

22TRCV00993 22TRCV00993

County: los-angeles

Division: Civil Law and Motion

Department: 5

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Case Number: 22TRCV00993 Hearing Date: September 18, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

GARDENA NEIGHBORS LLC

;

Plaintiff,

vs.

WG HOLDINGS SPV, LLC

;

Defendant.

Case

No.:

22TRCV00993

Hearing

Date:

September
18, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1)

DEFENDANT

AND CROSS-COMPLAINANT BRIDGELAND RESOURCES, LLC F/K/A WG HOLDINGS SPV, LLC'S
MOTION TO SET ASIDE DEFAULT, ORDER STRIKING CROSS-COMPLAINT, AND DEFAULT
JUDGMENT

(2)

PLAINTIFF

AND CROSS-DEFENDANT GARDENA NEIGHBORS LLC'S REQUEST TO ORDER WILL DEPUY TO
PERSONALLY APPEAR AND TESTIFY

(3)

PLAINTIFF

AND CROSS-DEFENDANT GARDENA NEIGHBORS LLC'S REQUEST FOR AN UNDERTAKING

(4)

PLAINTIFF

AND CROSS-DEFENDANT GARDENA NEIGHBORS LLC'S REQUEST FOR REIMBURSEMENT

MOVING PARTY: Defendant and Cross-Complainant,
Bridgeland Resources, LLC f/k/a WG Holdings SPV

RESPONDING PARTY: Plaintiff and Cross-Defendant, Gardena
Neighbors LLC

(1)

Defendant

and Cross-Complainant Bridgeland Resources, LLC f/k/a WG Holdings SPV's Motion
to Set Aside Default, Order Striking Cross-Complaint, and Default Judgment is

GRANTED IN PART pursuant to Code of Civil Procedure section 473, subdivision (d), and DENIED IN PART pursuant to Code of Civil Procedure section 473, subdivision (b).

(2)

Plaintiff and Cross-Defendant Gardena

Neighbors LLC's Request to Order Will DePuy to Appear and Testify is DENIED pursuant to Code of Civil Procedure section 473, subdivision (d).

(3)

Plaintiff

and Cross-Defendant Gardena Neighbors LLC's Request for an Undertaking is DENIED pursuant to Code of Civil Procedure section 473, subdivision (d).

(4)

Plaintiff

and Cross-Defendant Gardena Neighbors LLC's Request for Reimbursement is DENIED pursuant to Code of Civil Procedure section 473, subdivision (d).

The Court considers the moving papers filed on August 20, 2026, the opposition brief filed on September 8, 2026, the reply brief filed on September 14, 2026, and the objection filed on September 15, 2026.

BACKGROUND

Factual Background

On October 20, 2022, plaintiff Gardena Neighbors LLC ("Gardena") filed the Complaint against defendants WG Holdings SPV, LLC and DOES 1 through 100.

On July 26, 2024, Gardena filed the First Amended Complaint ("FAC") against defendants Bridgeland Resources, LLC f/k/a WG Holdings SPV ("Bridgeland") and DOES 1 through 100. The FAC includes the following causes of action: (1) Declaratory Relief; (2) Breach of Lease; (3) Breach of the Implied Covenant of Good Faith and Fair Dealing; (4) Ejectment; (5) Nuisance; and (6) Trespass.

On November 11, 2024, Bridgeland

filed the Cross-Complaint against cross-defendants Gardena, All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Property Described in the Complaint Adverse to Plaintiff's Title, or Any Cloud on Plaintiff's Title Thereto, and DOES 1 through 100.

On November 12, 2024,
Bridgeland filed an Answer to Gardena's FAC.
The Answer remains unstricken.

On January 3, 2025, Bridgeland
filed the First Amended Cross-Complaint ("FAXC") against cross-defendants Gardena, All Persons Unknown, Claiming Any Legal or Equitable Right, Title, Estate, Lien, or Interest in the Property Described in the Complaint Adverse to Plaintiff's Title, or Any Cloud On Plaintiff's Title Thereto, and DOES 1 through 100. The FAXC includes two causes of action: (1) Quiet Title and (2) Declaratory Relief.

On April 7, 2026, the Court
granted the Motion to Be Relieved as Counsel filed by Ernest James Guadiana, Bridgeland's then-counsel. (April 7, 2026 Minute Order, p. 1.) The Court
ordered Bridgeland "to update it's current contact information, including email address, mailing address, and telephone number within one week of this order." (April 7, 2026 Minute Order, p. 1.) Additionally, the Court scheduled a Status Conference Re: Bridgeland Resources, LLC's Obtainment of Counsel for June 2, 2026, at 8:30 a.m. (April 7, 2026 Minute Order, p. 1.)

Guadiana provided notice to
Bridgeland at One Riverway, Suite 1025, Houston, TX 77024, via overnight Federal Express. (Notice of Ruling, PoS, p. 3.) Additionally, Guadiana sent an email to Will DePuy, the general counsel for Cat Canyon Resources, LLC, and Bridgeland in an unrelated matter, informing him that the Court had granted the motion to relieve him as counsel, that a case management conference was scheduled for June 2, 2026, and that Bridgeland was required to update its contact information so that the Court could keep Bridgeland informed about this action. (Declaration of Will Depuy ("Depuy Decl."), ¶¶ 2, 10; Gardena's RJN, Exh. A, ¶ 2.)

On June 2, 2026, Bridgeland

did not appear at the scheduled status conference. (June 2, 2026 Minute Order, p. 1.) Gardena's "counsel report[ed] that there has

been no contact with defendant Bridgeland Resources, LLC's and no update as to

their obtainment of counsel. ¶ [Gardena's]

counsel indicate[d] that he intends to proceed by way of default as to

Bridgeland Resources, LLC." (June 2, 2026

Minute Order, p. 1.)

Gardena's proof of service

indicates that a request for entry of default was served on Bridgeland's

registered agent for service of process, CT Corporation System, located at 330

N Brand Blvd., Glendale, CA, via first-class mail on June 2, 2026. This request was filed the following day. However, on June 3, 2026, the clerk of the Court

declined to enter default due to an incorrect date listed in Item 1a.

On June 10, 2026, Gardena filed

a default package against Bridgeland. Gardena's

proof of service indicates that the package was served on Bridgeland's

registered agent for service of process, CT Corporation System, located at 330

N Brand Blvd., Glendale, CA 91203, via first-class mail on the same date.

On June 16, 2026, Gardena filed

a Request for Entry of Default against Bridgeland, rectifying the previously

stated incorrect date. Nevertheless, the

clerk of the Court declined to enter default against Bridgeland due to Gardena's

omission of a complete address in Item 6b(2). Furthermore, it appears that Gardena did not

serve this updated request, as the proof of service indicates that this

document was served on June 2, 2026.

On June 17, 2026, Gardena filed

a Request for Entry of Default against Bridgeland, this time including the

complete address. The clerk of the Court

subsequently entered default against Bridgeland on that same date. However, it remains evident that Gardena did

not serve this revised request, as the proof of service still claims it was

served on June 2, 2026.

On July 13, 2026, Gardena filed

a default package against Bridgeland. Gardena's

proof of service indicates that the package was served on Bridgeland's

registered agent for service of process, CT Corporation System, located at 330 N Brand Blvd., Glendale, CA 91203, via first-class mail on June 10, 2026.

On July 31, 2026, Gardena filed the Ex Parte Application to (1) Dismiss or Strike Defendant's Cross-Complaint and (2) Enter Default Judgment, along with a proposed judgment. Gardena's proof of service states that the documents were served on Bridgeland's registered agent for service of process, CT Corporation System, at 330 N Brand Blvd., Glendale, CA 91203, on July 30, 2026.

On August 3, 2026, the Court granted the Ex Parte Application. Consequently, the Court entered a default judgment in favor of Gardena and struck/dismissed Bridgeland's FAXC. (August 3, 2026 Minute Order, p. 1.) Bridgeland received notice of the default judgment, the dismissal of the FAXC, and the related minute order on August 5, 2026. (Declaration of Tamara Kling ("Kling Decl."), ¶ 7, Exh. A; Declaration of Ramona Varney ("Varney Decl."), ¶ 5, Exh. A.)

Procedural Background

On August 20, 2026, Bridgeland filed this motion and the Ex Parte Application for Order Shortening Time on its Motion to Set Aside Default, Order Striking Cross-Complaint, and Default Judgment.

On August 24, 2026, the Court granted the ex parte application and scheduled the hearing for the motion on September 18, 2026. Additionally, the Court issued the following orders: (1) "Opposition papers shall be filed and served, and a courtesy copy delivered directly to Department 5, by 4:30 PM on 09/08/2026[.]" and (2) "Any reply shall be filed and served, and a courtesy copy delivered directly to Department 5, by 4:30 PM on 09/14/2026." (August 24, 2026 Minute Order, p. 1.)

On September 8, 2026, at 9:06 AM, Gardena filed and served its opposition brief. On September 14, 2026, at 6:44 p.m., Bridgeland filed its reply brief.

UNTIMELY REPLY BRIEF

On August 24, 2026, the Court issued the following order: “Any reply shall be filed and served, and a courtesy copy delivered directly to Department 5, by 4:30 PM on 09/14/2026.” (August 24, 2026 Minute Order, p. 1.)

On September 14, 2026, at 6:44 p.m., Bridgeland filed its reply brief. Consequently, the Court finds that Bridgeland's reply brief is untimely and will therefore decline to consider it. (See Cal. Rules of Court, rule 3.1300(d).)

REQUEST FOR JUDICIAL NOTICE

Bridgeland's Request

Filed concurrently with its moving papers, Bridgeland has filed a Request for Judicial Notice (“RJN”), requesting that this Court take judicial notice of:

1.
Bridgeland's Answer, filed on November 12, 2024,
Exhibit A;
2. The
Minute Order and the Order Granting Ernest Guadiana's Motion to Be Relieved as
Counsel – Civil, dated April 7, 2026, Exhibit B;
3. Minute
Order, Order of Dismissal, and the Notice of Entry of Judgment, dated August 3,
2026, Exhibit C; and
4.
Proofs of Service, filed on July 13 and July 31,
2026, Exhibit D.

The Court GRANTS these requests. The Court takes judicial notice of these documents as “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States[.]” in accordance with Evidence Code section 452, subdivision (d). However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are

subject to interpretation. (See L.B.

Research & Education Foundation v. UCLA Foundation (2005) 130 Cal.App.4th 171, 180, fn. 2, citing Comings v. State Bd. of Education (1972) 23 Cal.App.3d 94.)

Gardena's Requests

Filed concurrently with its opposition brief, Gardena has filed an RJN, requesting that this Court take judicial notice of:

1.

The Declaration of William D. DePuy in Support of Motion of Proposed Intervenor-Plaintiff Bridgeland Resources LLC to File Complaint in Intervention Pursuant to Fed. R. Civ. P. 24, filed on March 4, 2024, in Jeffrey Powers, et al. v. Denis Richard McDonough, et al., United States District Court for the Central District of California, Case No. 2:22-cv-08357-DOC-KS, Dkt. 144-3, Exhibit A;

2.

The California Secretary of State Business search results for Bridgeland Resources, LLC (Entity No. 202116810045), Exhibit B;

3.

Texas Franchise Tax Account Status for Bridgeland Resources, LLC, Exhibit C;

4.

The Notice of Motion, Motion to Be Relieved as Counsel—Civil (Judicial Council Form MC-051), and Proof of Service, Exhibit D;

5.

The Order granting Motion to Be Relieved as Counsel—Civil (Judicial Council Form MC-053), Exhibit E;

6.

The Notice of Ruling re Motion to Be Relieved as Counsel and Proof of Service, Exhibit F;

7.

The Amended Complaint in Searcy v. Wood, Case

No. 16-03062-hdh, United States Bankruptcy Court for the Northern District of Texas, Dallas Division, filed in connection with In re ERG Intermediate Holdings, LLC, et al., Case No. 15-31858-hdh-11, Exhibit G;

8.

First Amended Complaint in Royalty Clearinghouse, Ltd. v. CTS Properties, Ltd., et al., Case No. 1:16-cv-01342-LY, United States District Court for the Western District of Texas, Austin Division, Exhibit H;

9.

The Report and Recommendation of the United States Magistrate Judge in Royalty Clearinghouse, Ltd. v. CTS Properties, Ltd., et al., Case No. 1:16-cv-01342-LY-ML, Exhibit I;

10.

Order to Pay a Civil Penalty No. 1405, Exhibit J;

11.

Order to Pay a Civil Penalty and Perform Remedial Work No. 1452, Exhibit K;

12.

Order to Pay Civil Penalties and Perform Remedial Work No. 1455, Exhibit L;

13.

Order to Pay a Civil Penalty No. 1495, Exhibit M;

14.

The California Integrated Water Quality System Party At-A-Glance Report for Bridgeland Resources LLC (Party ID S672577), Exhibit N; and

15. Opinion

in Powers v. McDonough, Nos. 24-6338, 24-6576, 24-6578, 24-6603, 24-6888 (9th Cir. Dec. 23, 2025), Exhibit O.

The Court GRANTS and takes judicial notice of RJN Nos. 1, 4, 5, and 6 as “[r]ecords of (1) any court of this state or (2) any court of record of the United States or of any state of the United States[.]” in accordance with Evidence Code section 452, subdivision (d).

The Court GRANTS and takes judicial notice of RJN Nos. 2 and 3 as “[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States[.]” in accordance with Evidence Code section 452, subdivision (c).

However, the Court will not take judicial notice of the truth of the matters presented in these documents since they are subject to interpretation. (See *L.B. Research & Education Foundation v. UCLA Foundation* (2005) 130 Cal.App.4th 171, 180, fn. 2, citing *Comings v. State Bd. of Education* (1972) 23 Cal.App.3d 94.)

The Court DENIES the request for judicial notice concerning the remaining documents, finding that they are not relevant to the disposition of this matter. (See *OneTaste Inc. v. Netflix, Inc.* (2025) 116 Cal.App.5th 174, 193-194.)

LEGAL STANDARD

Pursuant to Code of Civil Procedure section 473, subdivision (b), discretionary and mandatory relief are available to parties from a judgment, dismissal, order, or other proceeding.

Discretionary relief is available under the statute as “the court may, upon any terms as may be just, relieve a party or his or her legal representative from judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. (Code Civ. Proc., § 473, subd. (b).) “Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc., § 473, subd. (b).)

Alternatively, mandatory relief is available when “accompanied by an

attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect." (Code Civ. Proc., § 473, subd. (b).) Under this statute, an application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (Code Civ. Proc., § 473, subd. (b); English v. IKON Business Solutions, Inc. (2001) 94 Cal.App.4th 130, 143.) "[W]hen relief under section 473 is available, there is a strong public policy in favor of granting relief and allowing the requesting party his or her day in court[.] [Citation.]" (Rappleyea v. Campbell (1994) 8 Cal.4th 975, 981-982.)

Additionally, "[t]he court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

DISCUSSION

Bridgeland requests that the Court take the following actions: (1) set aside and vacate the default entered against Bridgeland on July 17, 2026; (2) set aside and vacate the Court Order, granted on August 3, 2026, striking Bridgeland's FAXC and dismissing it without prejudice; (3) set aside and vacate the default judgment entered on August 3, 2026 in favor of Gardena; and (4) confirm Bridgeland's Answer to the FAC, filed on November 12, 2024, remains the operative responsive pleading; and (5) reinstate Bridgeland's FAXC stricken by the Court's August 3, 2026 Order. (Notice of Motion, p. 2:2-16.)

Void – Entry of Default and Default Judgment

Bridgeland asserts that the entry of default and the subsequent default judgment are either void or voidable, given that Bridgeland's Answer to the FAC remains on file. (Motion, p. 5:12-23.) The Court agrees and finds that both the entry of default and the default judgment are void.

“Judgment may be had, if the defendant fails to answer the complaint, as follows: ¶ (b)

In other actions, if the defendant has been served, other than by publication, and no answer, demurrer, notice of motion to strike of the character specified in subdivision (f), notice of motion to transfer pursuant to Section 396b, notice of motion to dismiss pursuant to Article 2 (commencing with Section 583.210) of Chapter 1.5 of Title 8, notice of motion to quash service of summons or to stay or dismiss the action pursuant to Section 418.10 or notice of the filing of a petition for writ of mandate as provided in Section 418.10 has been filed with the clerk of the court within the time specified in the summons, or within further time as may be allowed, the clerk, upon written application of the plaintiff, shall enter the default of the defendant. The plaintiff thereafter may apply to the court for the relief demanded in the complaint. The court shall hear the evidence offered by the plaintiff, and shall render judgment in the plaintiff's favor for that relief, not exceeding the amount stated in the complaint, in the statement required by Section 425.11, or in the statement provided for by Section 425.115, as appears by the evidence to be just. If the taking of an account, or the proof of any fact, is necessary to enable the court to give judgment or to carry the judgment into effect, the court may take the account or hear the proof, or may, in its discretion, order a reference for that purpose. If the action is for the recovery of damages, in whole or in part, the court may order the damages to be assessed by a jury; or if, to determine the amount of damages, the examination of a long account is involved, by a reference as above provided.”

(Code Civ. Proc., § 585, subd. (b), emphasis added.)

“The defendants’ answer being on file, the entry of their default by the clerk was unauthorized by the statute (§ 585, Code Civ.Proc.; *Berry v. Crowell*, (1921) 55 Cal.App. 534, 538, 203 P. 835; *Warden v. Lamb*, (1929) 98 Cal.App. 738, 741, 277 P. 867) and the purported entry was wholly void and subject to expungement at any time (*Reher v. Reed*, (1913) 166 Cal. 525, 528, 137 P. 263, Ann.Cas.1915C, 737; *Baird v. Smith*, (1932) 216 Cal. 408, 410–413, 14 P.2d 749; *Crofton v. Young*, (1941) 48 Cal.App.2d 452, 119 P.2d 1003.)” (*Potts v. Whitson* (1942) 52 Cal.App.2d 199, 207.)

“Having concluded the orders entering the defaults of defendants are void, we must conclude the default judgment against defendants is also void.”

(*Sole Energy Co. v. Hodges* (2005) 128 Cal.App.4th 199, 210.) “When a clerk manifestly acts beyond his or her statutorily-conferred powers in entering a default, that action is void, as

is any default judgment predicated on it. (Schwab v. Southern California Gas Co. (2004) 114 Cal.App.4th 1308, 1320, 8 Cal.Rptr.3d 627; Bristol Convalescent Hospital, supra, 258 Cal.App.2d 848, 66 Cal.Rptr. 404.) Similarly, when the trial court's action in entering a default judgment is manifestly beyond its statutory powers, the judgment is void. (Heidary v. Yadollahi, supra, 99 Cal.App.4th at pp. 862–864, 121 Cal.Rptr.2d 695.)” (Bae v. T.D. Service Co. of Arizona (2016) 245 Cal.App.4th 89, 99, fn. 7.)

The Court emphasizes that this interpretation aligns with the explicit language of Code of Civil Procedure Section 585, which clearly states that “[j]udgment may be had[] if the defendant fails to answer the complaint[.]” (Code Civ. Proc., § 585, subd. (b), emphasis added.) Consequently, if a defendant has filed an answer and that answer is considered operative, the issuance of a default judgment is not authorized under the statute.

After reviewing the Court’s records, the Court confirms that Bridgeland’s Answer has never been struck or dismissed, even when the clerk of the Court entered a default against Bridgeland. Consequently, the clerk acted beyond their statutory duties, rendering the entry of default void. Moreover, since the resulting default judgment was predicated on this void entry of default, the default judgment is also considered void. However, the issue of whether it was appropriate to strike Bridgeland’s FAXC remains pending before the Court, as Gardena’s request to strike the FAXC was independent of the entry of default.

Accordingly, the Court GRANTS Bridgeland’s request to (1) vacate the default entered against Bridgeland on July 17, 2026, (2) vacate the default judgment entered on August 3, 2026, in favor of Gardena, and (3) confirm that Bridgeland’s Answer to the FAC, filed on November 12, 2024, remains the operative responsive pleading.

Striking Bridgeland’s First Amended Cross-Complaint

Bridgeland asserts that it did not receive notice of the request that resulted in the striking of its FAXC, which precluded it from opposing the request. (Motion, pp. 5:24-7:4.) Bridgeland asserts that the order striking the FAXC is void under Code of Civil Procedure section 473, subdivision (d). (Motion, pp. 5:24-7:4.)

The Court, however, will not resolve the issue of whether Bridgeland was properly served or notified. Instead, it finds that Bridgeland has failed to provide a sufficient legal analysis to justify setting aside the order that struck its FAXC or reinstating the FAXC.

An ex parte order that strikes a cross-complaint without appropriate notice violates both California Rules of Court, rule 3.1203(a), and the due process guarantees enshrined in the California and federal constitutions. However, when “the court has jurisdiction over the party and the questions presented, but acts in excess of its defined power, the judgment is voidable, not void.” (Lee v. An (2008) 168 Cal.App.4th 558, 566 (Lee).)

Bridgeland contends that it was not informed that its FAXC could be stricken, thereby leaving it without the opportunity to contest the request. If this assertion is accurate, the Court possessed jurisdiction over both the parties and the subject matter but exceeded its defined power by granting the request without ensuring that Bridgeland had the chance to present its case.

This circumstance would result in a voidable order, rather than a void one. Consequently, Bridgeland cannot invoke Code of Civil Procedure section 473, subdivision (d), which is applicable solely to void orders. (Lee, supra, 168 Cal.App.4th at p. 566.)

The Court notes that Bridgeland seeks discretionary relief under Code of Civil Procedure section 473, subdivision (b), but fails to demonstrate that such relief is appropriate as to the order striking the FAXC. (Motion, pp. 7:5-8:1.)

Bridgeland argues, “Even if the Court does not find the judgment void outright, relief is independently warranted under section 473(b). Bridgeland did not abandon this litigation by choice. It appeared, answered and actively litigated for eighteen months, including filing its own Cross Complaint. After counsel was relieved, Bridgeland was placed in a position where any misstep in notice was especially likely to be fatal, and, on this record, was fatal. The breakdown in notice described above is precisely the type of surprise and excusable neglect section 473(b) exists to remedy, particularly given California’s policy of resolving doubts in favor of a hearing on the merits. (Elston v. City of Turlock, supra,

38 Cal.3d at p. 233.)” (Motion, p. 7:7-15.).

As a result, Bridgeland appears to be requesting discretionary relief from the default judgment exclusively under Code of Civil Procedure section 473, subdivision (b).

The Court notes that the Elston Court held that “excusable neglect is that neglect which might have been the act of a reasonably prudent person under the same circumstances.” Further, the fact that a party or its representative ... made a considered choice about how to respond to a known risk, does not by itself satisfy this standard; the neglect must arise from mistake, inadvertence, surprise, or excusable neglect, not from a deliberate decision that later proves unwise. Elston, *supra* at p. 234. The “reasonably prudent person” standard against which neglect is measure is applied with particular rigor where, as here, the person who failed to act is himself a licensed attorney with legal training... Huh v. Wang (2007) 158 Cal.App.4th 1406, 1423-24.

Finally, “... where the defendant, with full knowledge of the proceedings, and without being mislead by the opposing party or counsel, fails to take action to protect his interests until after the default, it is an abuse of discretion to set the default aside” pursuant to Code of Civil Procedure section 473, subdivision (b). See, *Yarbrough v. Yarbrough* (1956) 144 Cal. App. 2d 610, 614-615, and *Ray Kizer Constr. Co. v. Young* (1968) 257 Cal. App. 2d 766, 769. Nor do courts relieve a party from the effects of what amounts to ordinary carelessness once it has actual notice of the risk. *Benjamin v. Dalmo Mfg. Co.* (1948) 31 Cal.2d 523, 529.

Here, Bridgeland’s prayer for discretionary relief within the meaning of Code of Civil Procedure section 473, subdivision (b) is fraught with unclean hands. Its own general counsel, DePuy had full knowledge of the withdrawal order, the risk of default it described, and the June 2, 2026, Case Management Conference it set; yet, by his own account, simply chose not to act on any of it. This course of action was not an oversight; rather, it was a deliberate choice to receive a pertinent document, understand its contents, appreciate its risks, and fail to act on it or verify that anyone else would. Like *Yarbrough* and *Ray*

Kizer, Bridgeland through DePuy, had full knowledge of the proceedings and the specific risk; yet, failed to at until after the default and judgment were entered. This deliberate decision is not "mistake, inadvertence, surprise or excusable neglect" within the meaning of section 473(b). For this Court to find otherwise it would be an abuse of discretion.

Accordingly, the Court DENIES Bridgeland's request to (1) vacate the Court Order issued on August 3, 2026, which struck Bridgeland's FAXC and dismissed it without prejudice, and (2) reinstate the FAXC struck by the Court's August 3, 2026, Order.

Gardena's Various Requests

Gardena requests that the Court take the following actions: (1) summon Will DePuy to appear before the Court and provide testimony concerning the alleged discrepancies between the declaration submitted in support of this motion and the declaration filed in the case of Jeffrey Powers, et al. v. Denis Richard McDonough, et al.; (2) order Bridgeland to post an undertaking should the Court grant relief pursuant to Code of Civil Procedure section 473, subdivision (b); and (3) order Bridgeland to reimburse Gardena's ongoing carrying costs should the Court grant relief in accordance with Code of Civil Procedure section 473, subdivision (b). (Opp., pp. 18:8-19:18, 22:1-26:9.) The Court DENIES all requests.

The Court observes that the alleged discrepancies in DePuy's declarations did not influence its findings. Consequently, the Court finds it neither appropriate nor necessary to summon DePuy to provide testimony.

The Court will not impose an undertaking or require Bridgeland to reimburse Gardena's ongoing carrying costs under Civil Procedure section 473, subdivision (b), as the Court did not grant this motion based on that statute.

ORDERS

1)
Defendant
and Cross-Complainant Bridgeland Resources, LLC f/k/a WG Holdings SPV's Motion

to Set Aside Default, Order Striking Cross-Complaint, and Default Judgment is GRANTED IN PART.

2)

The Court

GRANTS Bridgeland's request to (1) vacate the default entered against Bridgeland on July 17, 2026, (2) vacate the default judgment entered on August 3, 2026, in favor of Gardena, and (3) confirm that Bridgeland's Answer to the FAC, filed on November 12, 2024, remains the operative responsive pleading, pursuant to CCP Section 473(d).

3)

The

Court DENIES Bridgeland's request to (1) vacate the Court Order issued on August 3, 2026, which struck Bridgeland's FAXC and dismissed it without prejudice, and (2) reinstate the FAXC struck by the Court's August 3, 2026, Order pursuant to CCP Section 473(b).

4)

Defendant

and Cross-Defendant Gardena Neighbors LLC's Request to Order Will DePuy to Appear and Testify is DENIED.

5)

Plaintiff

and Cross-Defendant Gardena Neighbors LLC's Request for an Undertaking is DENIED.

6)

Plaintiff

and Cross-Defendant Gardena Neighbors LLC's Request for Reimbursement is DENIED.

7)

Bridgeland

is ordered to give notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 18, 2026

Tamara
Hall

Judge
of the Superior Court